

THE NCA HUB

Examination Preparation

CANADIAN FAMILY LAW

COMPREHENSIVE STRATEGIC NOTES

Based on: Payne & Payne, Canadian Family Law, 10th ed. (Irwin Law, 2025)

Revised January 2026 Syllabus | Exam Date: April 13, 2026 (Morning/Afternoon)

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Note on Provincial Variation

The NCA Family Law syllabus is primarily Ontario-based (Divorce Act (federal), Family Law Act (Ontario), Children's Law Reform Act (Ontario)). Candidates practicing outside Ontario should identify their own province's equivalent statutes, but may follow the same topics and analytical framework. These notes use Ontario as the primary jurisdiction.

How to Use These Notes

These Strategic Notes provide comprehensive, exam-focused coverage of every testable topic on the NCA Canadian Family Law syllabus (Revised January 2026). They are your primary open-book reference during the examination and structured revision tool in the weeks beforehand.

PARAMETER	DETAIL
Format	Open-book. Hard copy only — no electronic devices, laptops, tablets, or phones.
Duration	3 hours (180 minutes)
Pass Mark	50% — pass/fail grading system
Exam Date	April 13, 2026 (Morning and Afternoon sittings)
Structure	Approximately 5 questions of unequal mark value totalling 100 marks. Based on the sample exam: 10+30+20+20+20 marks. Multi-part questions are common.
Marking	Issue identification + statutory provision (cite the section number) + case principle + application to facts. Bare conclusions without analysis score zero. Citing the wrong statute costs marks.
Key Texts	Divorce Act, R.S.C. 1985, c. 3 (2nd Supp.), as amended; Federal Child Support Guidelines, SOR/97-175; Family Law Act, R.S.O. 1990, c. F.3; Children's Law Reform Act, R.S.O. 1990, c. C.12; Spousal Support Advisory Guidelines (Rogerson/Thompson, 2008, revised 2016).
Primary Text	Payne & Payne, Canadian Family Law, 10th ed. (Irwin Law, 2025). The 10th edition contains updated material including 2024-2025 cases.

Three-Step Study Method

- **Step 1 — STRUCTURE:** Know the federal/provincial split. Before anything else, be able to identify which statute applies to every issue. Applying the wrong statute is the most common exam failure. Use the Master Framework below to build this reflex.
- **Step 2 — CALCULATE:** Practice the NFP equalization calculation and child support table calculations until they are automatic. The sample exam shows that Q5 is always a pure calculation. You must be able to work through it systematically without confusion.
- **Step 3 — APPLY:** In every practice question, cite the section number first, then the case, then apply to facts. Never describe the law without connecting it to the specific facts in the question.

⚠ EXAM TIP — OPEN-BOOK REALITY

Because your notes are in front of you, examiners test application — not recitation. They expect precise statutory citations (Divorce Act s.16(1), FLA s.4(1), CSG s.9(b)) AND case names. A answer that says 'under the legislation, courts consider the best interests of the child' scores almost nothing. An answer that says 'Under Divorce Act s.16(1), the court must consider only the best interests of the child as the sole criterion, including the 16 factors in s.16(3), with family violence being a mandatory consideration under s.16(3)(j) (Barendregt v Grebliunas 2022 SCC 22)' scores marks. TAB this document by Part.

Master Family Law Framework — Apply to Every Problem Question

The single most important analytical skill in Canadian Family Law is identifying WHICH STATUTE applies to WHICH PARTY on WHICH ISSUE. The federal/provincial split is tested on every exam. Get this wrong and all your analysis flows from the wrong source.

THE FEDERAL/PROVINCIAL SPLIT — BUILD THIS REFLEX FIRST	
DIVORCE ACT (Federal — applies to married spouses)	Applies ONLY when married spouses are divorcing or obtaining variation of divorce orders. Covers: grounds for divorce (s.8), parenting orders (ss.16-16.96), child support (s.15.1), spousal support (s.15.2), variation (s.17). The Divorce Act applies in ALL provinces when married spouses are divorcing — it is federal law.
FAMILY LAW ACT (Ontario — applies broadly)	Ontario provincial statute. Applies to MARRIED spouses (for equalization of net family property, matrimonial home, support) and COHABITING SPOUSES (for support, if 3+ years or child together). DOES NOT provide equalization rights to unmarried cohabitants — only married spouses get equalization of NFP. FLA applies whether or not the parties are divorcing.
CHILDREN'S LAW REFORM ACT (Ontario — parenting outside divorce)	Ontario provincial statute. Applies to parenting disputes where the parties are NOT proceeding under the Divorce Act — i.e., unmarried parents, or married parents who are not yet divorcing. Provides for parenting orders (s.21), contact orders, assessments (s.30), mediation (s.31), and jurisdiction (s.22 habitual residence — Dunmore v Mehralian 2025 SCC 20).
FEDERAL CHILD SUPPORT GUIDELINES (federal regulation)	Made under s.26.1 Divorce Act. Apply when child support is sought in divorce proceedings (Divorce Act s.15.1). Ontario also has Ontario Child Support Guidelines (Ont. Reg. 391/97) that apply to child support under the FLA and CLRA. The federal and Ontario guidelines use the same tables.
SPOUSAL SUPPORT ADVISORY GUIDELINES (SSAG)	NOT legally binding — they are an informal tool used by courts and lawyers to calculate spousal support ranges. Courts must still conduct the full entitlement analysis (Moge, Bracklow, Miglin) before applying the SSAG. The SSAG provide 'with child support' and 'without child support' formulas producing duration and quantum ranges.

The Universal Family Law Checklist — Apply to Every Problem Question

1. IDENTIFY THE PARTIES: Are they married? Cohabiting? Duration of relationship? Children? This determines which statutes apply.
2. IDENTIFY THE PROCEEDINGS: Are they divorcing (Divorce Act applies)? Seeking provincial orders only (FLA/CLRA applies)? Both?
3. IDENTIFY THE ISSUES: Support? Property? Parenting? Domestic contract? Each issue has its own statutory regime.
4. CITE THE STATUTE: For every issue, state the exact provision. 'Under s.15.2 of the Divorce Act...' 'Under s.4(1) of the FLA...' Section numbers are mandatory.
5. CITE THE CASE: Apply the leading authority. For spousal support: Moge, Bracklow, Miglin. For child support: the Guidelines, Chartier, Contino. For parenting: Divorce Act ss.16(1)-(7), Barendregt 2022. For equalization: FLA ss.4-5.
6. APPLY TO FACTS: Connect every rule to specific facts using 'because' or 'on the facts.' Never end with a rule statement alone.
7. CONCLUDE: State the outcome clearly — what order should be made and why.

⚠ EXAM TIP — THE FIVE EXAM QUESTION TYPES — FROM THE SAMPLE EXAM

Q1: Jurisdiction (10 marks) — always short, foundational — which court, which province, transfer. Q2: Parenting (30 marks) — always the biggest question — best interests, CLRA vs Divorce Act, variation, ADR. Q3: Child Support (20 marks) — always involves calculations — table amounts, s.7 expenses, multiple obligors, high income. Q4: Domestic Contracts (20 marks) — consistently tested — setting aside, waiver, disclosure, Miglin. Q5: Equalization of NFP (20 marks) — always a calculation with

excluded property analysis.

PART I

CONSTITUTIONAL FRAMEWORK, MARRIAGE, AND UNMARRIED COHABITANTS

Chapter 1: Constitutional Framework — The Federal/Provincial Division

1.1 The Constitutional Division of Family Law Powers

Family law in Canada is divided between federal and provincial jurisdiction under the Constitution Act, 1867. Understanding this division is essential because applying the wrong statute is the most common mistake NCA candidates make.

FEDERAL POWER (Constitution Act, 1867, s.91)	PROVINCIAL POWER (Constitution Act, 1867, s.92)
s.91(26): Marriage and Divorce Federal Parliament has exclusive jurisdiction over the substantive law of MARRIAGE (validity, who may marry) and DIVORCE (grounds, procedures, corollary relief on divorce including parenting and support orders).	s.92(12): Solemnization of Marriage Provinces regulate the CEREMONY and FORMAL REQUIREMENTS of marriage — licences, officiants, registration. The form of marriage is provincial; the substance is federal.
The Divorce Act (federal) governs divorce and all corollary proceedings — parenting orders, support orders, variation of divorce orders.	s.92(13): Property and Civil Rights Provinces regulate property rights between spouses (equalization of net family property under the FLA), domestic contracts, support obligations outside divorce, and parenting orders outside divorce (CLRA).

⚠ EXAM TIP — THE CRITICAL PRINCIPLE

Married spouses divorcing → Divorce Act (federal) applies for divorce, parenting, and support.
 Married spouses not divorcing / unmarried cohabitants → FLA and CLRA (provincial) apply. Both regimes can apply simultaneously to different aspects of the same case: a divorcing couple can seek a divorce order under the Divorce Act AND equalization of NFP under the FLA at the same time.

1.2 Jurisdiction of Courts — The Fragmentation Problem

Family law jurisdiction in Ontario is divided between the Ontario Court of Justice (OCJ) and the Superior Court of Justice (SCJ). This fragmentation is a recurring exam topic.

- Superior Court of Justice: Has jurisdiction over divorce (Divorce Act), equalization of NFP (FLA), and all other family law matters. The **ONLY** court that can grant a divorce.
- Ontario Court of Justice: Has jurisdiction over matters under the FLA and CLRA (parenting, support) but **CANNOT** grant a divorce. If parties want a divorce, they must proceed in the SCJ.
- Family Court Branch of the SCJ: Exists in some Ontario regions and has unified jurisdiction — can hear all family matters under both the Divorce Act and provincial legislation in a single proceeding.
- Practical consequence: Parties seeking both a divorce **AND** provincial remedies (equalization, domestic contracts) must consolidate in the SCJ. Parties seeking only provincial remedies (parenting, support) may use the OCJ or SCJ.

1.3 Recognition of Same-Sex Marriage — Civil Marriage Act

The Civil Marriage Act, S.C. 2005, c. 33 extended civil marriage to same-sex couples across Canada. Key provisions:

- S.2: Marriage, for civil purposes, is the lawful union of two persons to the exclusion of all others.
- S.3: It is not contrary to the Canadian Charter of Rights and Freedoms to perform a religious marriage ceremony only for persons who are of the same sex.
- S.5: A marriage that is valid where it took place and that would be valid in Canada but for the fact that the parties are of the same sex is recognized for all purposes of federal law as a valid marriage.
- Non-resident same-sex marriages: The Civil Marriage of Non-Residents Act, S.C. 2013, c. 32 resolved the 'divorce trap' for non-resident same-sex couples married in Canada who could not divorce in their home country. Courts in Canada can now grant divorces to non-resident same-sex couples married in Canada even if neither party is domiciled in Canada.

Chapter 2: Formation and Annulment of Marriage

2.1 Formation of Marriage — Capacity and Form

Marriage in Canada requires both formal validity (the ceremony follows provincial requirements) and essential validity (the parties have capacity to marry).

FORMAL VALIDITY (Provincial)	ESSENTIAL VALIDITY (Federal)
Governed by provincial legislation (e.g., Ontario Marriage Act). Requirements: marriage licence, authorized officiant, two witnesses, registration. Failure of formal requirements may render a marriage voidable but not necessarily void.	Governed by federal common law. Includes: capacity (age, mental capacity, absence of prior subsisting marriage), absence of prohibited degrees of consanguinity, and genuine consent (free and voluntary consent of both parties).

Void vs Voidable Marriages

VOID MARRIAGE	VOIDABLE MARRIAGE
Void ab initio — never legally existed. No decree required to establish invalidity, though courts may declare it void. Cannot be ratified. Grounds: prohibited degrees of consanguinity (incest), prior subsisting valid marriage (bigamy), same-sex marriage before it was	Valid until annulled by a court decree. Can be ratified by subsequent cohabitation. Grounds: impotence (inability to consummate — must be permanent and incurable), lack of genuine consent (duress, fraud as to the nature of the ceremony, mistake as to the identity of the other

legally permitted.

party), mental incapacity at the time of marriage.

Annulment vs Divorce

Annulment declares that a valid marriage never existed — the parties were never legally married. Divorce dissolves a valid marriage. The practical significance in Canada is limited because divorced persons and annulled persons have essentially the same rights to property and support. However, annulment remains important where divorce would have religious consequences or where a party wants to establish they were never validly married.

2.2 Marriage Breakdown vs Nullity — Key Distinction

Marriage breakdown (ground for divorce under Divorce Act s.8) assumes a valid marriage existed and has irretrievably broken down. Nullity/annulment assumes no valid marriage ever existed. A petitioner cannot seek both — they must elect one or the other. If nullity is established, divorce proceedings become unnecessary.

⚠ EXAM TIP — ANNULMENT EXAM ISSUES

When a fact pattern mentions: (1) an earlier undisclosed marriage (bigamy → void marriage); (2) a ceremony where a party claims they did not understand they were marrying (mistake as to nature of ceremony → voidable); (3) impotence concealed before marriage (→ voidable); identify the correct legal category (void/voidable), whether it has been ratified, and the appropriate remedy (nullity vs divorce).

2.3 Prohibited Degrees of Consanguinity and Affinity

Canadian federal law (Marriage (Prohibited Degrees) Act, S.C. 1990, c. 46) specifies that no person shall marry another person if they are related by:

- Direct lineal relationship: parent–child, grandparent–grandchild (cannot marry regardless of how many generations removed).
- Siblings: brothers and sisters — including half-siblings and adopted siblings.
- Adoptive relationships: adoptive parent and child cannot marry.

Marriages between cousins and between uncle/aunt and nephew/niece are NOT prohibited under Canadian federal law — though they may be morally controversial. Only the specific relationships listed in the federal Act are prohibited.

2.4 Capacity to Marry — Mental Capacity and Duress

A valid marriage requires genuine, free, and voluntary consent from both parties at the time of the ceremony. The following vitiates consent:

VITIATING FACTOR	LEGAL EFFECT AND TEST
Mental Incapacity	A person lacks capacity to marry if at the time of the ceremony they are unable to: (a) understand the nature and character of marriage; (b) understand the duties and responsibilities of marriage; or (c) comprehend the commitment they are making. The test is assessed AT THE TIME OF THE CEREMONY — prior history of mental illness is not dispositive if the person had capacity at the relevant moment. A marriage contracted during a lucid interval is valid.